

DOT

Approved as to
form only:

amf
Date: 6/17/20

FTA

U.S. Department of Transportation

Federal Transit Administration

Award

Federal Award Identification Number (FAIN)	WY-2020-005-00
Temporary Application Number	1169-2020-2
Award Name	Cheyenne FY18 Sec 5307 COVID-19 Emergency Relief for Operations
Award Status	Active (Executed)
Award Budget Number	0

Period of Performance Start Date	6/5/2020	
Original Period of Performance End Date	12/31/2020	
Current Period of Performance End Date	12/31/2020	Revision #: 0

Part 1: Recipient Information

Name: Cheyenne, City Of

Recipient ID	Recipient OST Type	Recipient Alias	Recipient DUNS
1169	City	CHEYENNE, CITY OF	075758169

Location Type	Address	City	State	Zip
Headquarters	2101 O'NEIL AVE.	CHEYENNE	WY	82001-3512
Physical Address	2101 O'NEIL AVE.	CHEYENNE	WY	82001
Mailing Address	2101 O'NEIL AVE.	CHEYENNE	WY	82001

Union Information

There are no union contacts for this application

Part 2: Award Information

Title: Cheyenne FY18 Sec 5307 COVID-19 Emergency Relief for Operations

FAIN	Award Status	Award Type	Date Created	Last Updated Date	From TEAM?
WY-2020-005-00	Active (Executed)	Grant	4/28/2020	4/28/2020	No

Award Executive Summary

Cheyenne is requesting to utilize our remaining FY 2018 Section 5307 apportionment of \$744,674 as COVID-19 Emergency Relief funds at a 100% federal matching ratio to cover expenses directly related to COVID-19 for the period March 1, 2020, through September 30, 2020.

Governor Gordon declared a state of emergency for Wyoming on March 13, 2020. However, Cheyenne Transit had been following the pandemic data earlier, and, on March 1, 2020, started increasing cleaning schedules and purchase of cleaning supplies. Due to the COVID-19 pandemic, much changed in our small city including the closure of restaurants and many businesses. The transit agency was forced to make wide-sweeping changes in all transit operations to adjust accordingly to the new post-COVID environment. Over fifty percent of existing services had to be cut to keep the ordered social distancing. In an attempt to keep drivers and other staff employed, we strategized on ways to keep them paid. The top priority was to reassign employees to cover new COVID-related tasks including cleaning and safety-related activities. Deep cleaning of all buses and bus shelters to prevent the spread of COVID has been occurring on a frequent basis. Deep cleaning of the downtown transit station and maintenance facility was also conducted. Employees also implemented COVID-safety precautionary measures, such as designating standing zones to encourage six-foot distances for passengers waiting to board at stops and stations. We have also been paying large sums of administrative leave due to the operational changes and employees not working required due to COVID.

In addition, this grant will fund the reimbursement of costs associated with purchasing cleaning and safety-related items, such as cleaners and cleaning-related tools, personal protective supplies for employees, and paint and other supplies for creating safe standing zones. (None of the supplies will be considered as assets.)

We agree that if we receive federal funding from the Federal Emergency Management Agency (FEMA) or through a pass-through entity through the Robert T. Stafford Disaster Relief and Emergency Assistance Act, a different federal agency, or insurance proceeds for any portion of a project activity approved for FTA funding under this Grant Agreement, we will provide written notification to FTA, and reimburse FTA for any federal share that duplicates funding provided by FEMA, or another federal agency or an insurance company.

Frequency of Milestone Progress Reports (MPR)

Annual

Frequency of Federal Financial Reports (FFR)

Annual

Does this application include funds for research and/or development activities?

This award does not include research and development activities.

Pre-Award Authority

This award is using Pre-Award Authority.

Does this application include suballocation funds?

Recipient organization is the Designated Recipient and can apply for and receive these apportioned funds.

Will this Grant be using Lapsing Funds?

No, this Grant does not use Lapsing Funds.

Will indirect costs be applied to this application?

This award does not include an indirect cost rate.

Indirect Rate Details: N/A

Requires E.O. 12372 Review

No, this application does not require E.O. 12372 Review.

Delinquent Federal Debt

No Selection Made

Award Point of Contact Information

First Name	Last Name	Title	E-mail Address	Phone
Emma	Belmont	Transportation Program Specialist	emma.belmont@dot.gov	
Kristin	Kenyon	Community Planner	kristin.kenyon@dot.gov	
Renae	Jording	Transit Director	rjording@cheyennecity.org	307-637-6384

Award Budget Control Totals

Funding Source	Section of Statute	CFDA Number	Amount
5307 - COVID-19 ER Response Urbanized Area Formula Grants	5307-7	20507	\$744,674
Local			\$0
Local/In-Kind			\$0
State			\$0
State/In-Kind			\$0
Other Federal			\$0

Transportation Development Credit	\$0
Adjustment	\$0
Total Eligible Cost	\$744,674

Award Budget

Project Number	Budget Item	FTA Amount	Non-FTA Amount	Total Eligible Amount	Quantity
WY-2020-005-01-00	300-00 (300-A1) OPERATING ASSISTANCE	\$744,674.00	\$0.00	\$744,674.00	1
WY-2020-005-01-00	30.09.08 EMER RELIEF - OPERATING ASSIST - 100% Fed Share	\$744,674.00	\$0.00	\$744,674.00	1

Discretionary Allocations

This application does not contain discretionary allocations.

Sources of Federal Financial Assistance

PO Number	Project Number	Scope Name	Scope Number	Scope Suffix	UZA Code	Area Name	Account Class Code	FPC	Description	Amendment Amount	Cumulative Amount
WY-90-X067	WY-2020-005-01-00	OPERATING ASSISTANCE	300-00 (300)	A1	560000	Wyoming	2018.25.90.ER.2	04	Urb - Emergency Relief	\$744,674	\$744,674

Part 3: Project Information

Project Title: Emergency Relief Funds for Operations

Project Number	Temporary Project Number	Date Created	Start Date	End Date
WY-2020-005-01-00	1169-2020-2-P1	4/28/2020	3/1/2020	9/30/2020

Project Description

Cheyenne is requesting to utilize remaining FY 2018 Section 5307 funds (\$744,674) as Emergency Relief funds at a 100% federal matching ratio to cover expenses directly related to COVID-19 for the period March 1, 2020 through September 30, 2020.

Due to the COVID-19 pandemic, much changed in our small city including the closure of restaurants and many businesses. The transit agency was forced to make wide-sweeping changes in all transit operations to adjust accordingly to the new post-COVID environment. Over fifty percent of existing services had to be cut to enforce social distancing. In an attempt to keep drivers and other staff employed, we strategized on ways to keep them paid. The top priority was to reassign employees to cover new COVID-related tasks including cleaning and safety-related activities. Deep cleaning of all buses and bus shelters to prevent the spread of COVID has been occurring on a frequent basis. Deep cleaning of the downtown transit station and maintenance facility was also conducted. Employees also implemented COVID-safety precautionary measures, such as designating standing zones to encourage six-foot distances for passengers waiting to board at stops and stations. We have also been paying large sums of administrative leave due to the operational changes and employees not working required due to COVID.

In addition, this grant will fund the reimbursement of costs associated with purchasing cleaning and safety-related supplies, including cleaners, personal protective supplies for employees, and paint and other supplies for creating safe standing zones. (The supplies will be used by transit employees and will not be considered as assets.)

(We will not be devoting 1% of the total apportionment to security. Because Transit, the Police Department, Fire Department, and Risk Management are all divisions of the City of Cheyenne, the City covers the costs for safety and security for Transit. Therefore, we will not be devoting 1% of this grant to providing additional security.)

Project Benefits

These funds will allow the City to provide thorough cleaning throughout the transit system in response to COVID-19, including purchasing supplies and protective equipment for employees as well as keeping employees employed that would otherwise be furloughed.

Additional Information

None provided.

Location Description

Cheyenne, Wyoming.

Security

Yes -- our organization will expend at least 1% of the 5307 funds in this application for security-related projects.

Project Location (Urbanized Areas)

UZA Code	Area Name
563150	Cheyenne, WY

Congressional District Information

State	District	Representative
Wyoming	1	Liz Cheney

Program Plan Information

STIP/TIP

Date: Not Provided

Description: TIP/STIP requirement waived for Emergency Relief activities that are not expansion of services or facilities

UPWP

Date: N/A

Description: N/A

Long Range Plan

Date: N/A

Description: N/A

Project Control Totals

Funding Source	Section of Statute	CFDA Number	Amount
5307 - COVID-19 ER Response Urbanized Area Formula Grants	5307-7	20507	\$744,674
Local			\$0
Local/In-Kind			\$0
State			\$0
State/In-Kind			\$0
Other Federal			\$0

Transportation Development Credit	\$0
Adjustment	\$0
Total Eligible Cost	\$744,674

Project Budget

Project Number	Budget Item	FTA Amount	Non-FTA Amount	Total Eligible Amount	Quantity
WY-2020-005-01-00	300-00 (300-A1) OPERATING ASSISTANCE	\$744,674.00	\$0.00	\$744,674.00	1
WY-2020-005-01-00	30.09.08 EMER RELIEF - OPERATING ASSIST - 100% Fed Share	\$744,674.00	\$0.00	\$744,674.00	1

Project Budget Activity Line Items

Budget Activity Line Item: 30.09.08 - EMER RELIEF - OPERATING ASSIST - 100% Fed Share				
Scope Name / Code	Line Item #	Line Item Name	Activity	Quantity
OPERATING ASSISTANCE (300-00)	30.09.08	EMER RELIEF - OPERATING ASSIST - 100% Fed Share	OPERATING ASSISTANCE	1

Extended Budget Description

To allow for continued operations during COVID-19, to provide additional thorough and routine cleanings throughout system facilities and operations, to purchase protective equipment for employees and the public, and to keep employees working that would otherwise be furloughed. Period of performance is 3/1/2020 through 9/30/2020. Matching ratio is 100% federal. (Please note: the grantee confirmed that the 1% security requirement will NOT be met.)

Will 3rd Party contractors be used to fulfill this activity line item?

No, 3rd Party contractors will not be used for this line item.

Funding Source	Section of Statute	CFDA Number	Amount
5307 - COVID-19 ER Response Urbanized Area Formula Grants	5307-7	20507	\$744,674
Local			\$0
Local/In-Kind			\$0
State			\$0
State/In-Kind			\$0
Other Federal			\$0
Transportation Development Credit			\$0
Adjustment			\$0
Total Eligible Cost			\$744,674

Milestone Name	Est. Completion Date	Description
Start Date	3/1/2020	
End Date	9/30/2020	

Project Environmental Findings

Finding: Class II(c) - Categorical Exclusions (C-List)

Class Level Description

Class II(c) consists of projects called categorical exclusions (CEs) which are known not to have, either individually or cumulatively, a significant environmental impact on the human or natural environment and are therefore categorically excluded from the requirement to prepare an environmental assessment or an environmental impact statement. Class II(c) does not require documentation.

Categorical Exclusion Description

Type 05: Activities, including repairs, replacements, and rehabilitations, designed to promote transportation safety, security, accessibility and effective communication within or adjacent to existing right-of-way, such as: the deployment of Intelligent Transportation Systems and components; installation and improvement of safety and communications equipment, including hazard elimination and mitigation; installation of passenger amenities and traffic signals; and retrofitting existing transportation vehicles, facilities or structures, or upgrading to current standards.

Date Description	Date
Class IIc CE Approved	

Part 4: Fleet Details

No fleet data exists for this application.

Part 5: FTA Review Comments

Application Review Comments

Comment By	Kristin Kenyon
Comment Type	FTA Post Review Comments for Grantee
Date	5/21/2020
Comment	Please select different 5307 funding source specifically related to COVID-19 ER - thank you

Part 6: Agreement

**UNITED STATES OF AMERICA
DEPARTMENT OF TRANSPORTATION
FEDERAL TRANSIT ADMINISTRATION**

**GRANT AGREEMENT
(FTA G-26, October 1, 2019)**

On the date the authorized U.S. Department of Transportation, Federal Transit Administration (FTA) official signs this Grant Agreement, FTA has obligated and awarded federal assistance as provided below. Upon execution of this Grant Agreement by the Recipient named below, the Recipient affirms this FTA Award, enters into this Grant Agreement with FTA, and binds its compliance with the terms of this Grant Agreement.

The following documents are incorporated by reference and made part of this Grant Agreement:

- (1) "Federal Transit Administration Master Agreement," FTA MA(26), October 1, 2019, <http://www.transit.dot.gov>,
- (2) The Certifications and Assurances applicable to the FTA Award that the Recipient has selected and provided to FTA, and
- (3) Any Award notification containing special conditions or requirements, if issued.

WHEN THE TERM "FTA AWARD" OR "AWARD" IS USED, EITHER IN THIS GRANT AGREEMENT OR THE APPLICABLE MASTER AGREEMENT, "AWARD" ALSO INCLUDES ALL TERMS AND CONDITIONS SET FORTH IN THIS GRANT AGREEMENT.

FTA OR THE FEDERAL GOVERNMENT MAY WITHDRAW ITS OBLIGATION TO PROVIDE FEDERAL ASSISTANCE IF THE RECIPIENT DOES NOT EXECUTE THIS GRANT AGREEMENT WITHIN 90 DAYS FOLLOWING FTA's AWARD DATE SET FORTH HEREIN.

FTA AWARD

Federal Transit Administration (FTA) hereby awards a Federal Grant as follows:

Recipient Information

Recipient Name: Cheyenne, City Of

Recipient ID: 1169

DUNS No: 075758169

Award Information

Federal Award Identification Number: WY-2020-005-00

Award Name: Cheyenne FY18 Sec 5307 COVID-19 Emergency Relief for Operations

Award Start Date: 6/5/2020

Original Award End Date: 12/31/2020

Current Award End Date: 12/31/2020

Award Executive Summary: Cheyenne is requesting to utilize our remaining FY 2018 Section 5307 apportionment of \$744,674 as COVID-19 Emergency Relief funds at a 100% federal matching ratio to cover expenses directly related to COVID-19 for the period March 1, 2020 through September 30, 2020.

Governor Gordon declared a state of emergency for Wyoming on March 13, 2020. However, Cheyenne Transit had been following the pandemic data earlier, and, on March 1, 2020, started increasing cleaning schedules and purchase of cleaning supplies. Due to the COVID-19 pandemic, much changed in our small city including the closure of restaurants and many businesses. The transit agency was forced to make wide-sweeping changes in all transit operations to adjust accordingly to the new post-COVID environment. Over fifty percent of existing services had to be cut to keep the ordered social distancing. In an attempt to keep drivers and other staff employed, we strategized on ways to keep them paid. The top priority was to reassign employees to cover new COVID-related tasks including cleaning and safety-related activities. Deep cleaning of all buses and bus shelters to prevent the spread of COVID has been occurring on a frequent basis. Deep cleaning of the downtown transit station and maintenance facility was also conducted. Employees also implemented COVID-safety precautionary measures, such as designating standing zones to encourage six-foot distances for passengers waiting to board at stops and stations. We have also been paying large sums of administrative leave due to the operational changes and employees not working required due to COVID.

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Research and Development: This award does not include research and development activities.

Indirect Costs: This award does not include an indirect cost rate.

Suballocation Funds: Recipient organization is the Designated Recipient and can apply for and receive these apportioned funds.

Pre-Award Authority: This award is using Pre-Award Authority.

Award Budget

Total Award Budget: \$744,674.00

Amount of Federal Assistance Obligated for This FTA Action (in U.S. Dollars): \$744,674.00

Amount of Non-Federal Funds Committed to This FTA Action (in U.S. Dollars): \$0.00

Total FTA Amount Awarded and Obligated (in U.S. Dollars): \$744,674.00

Total Non-Federal Funds Committed to the Overall Award (in U.S. Dollars): \$0.00

Award Budget Control Totals

(The Budget includes the individual Project Budgets (Scopes and Activity Line Items) or as attached)

Funding Source	Section of Statute	CFDA Number	Amount
5307 - COVID-19 ER Response Urbanized Area Formula Grants	5307-7	20507	\$744,674
Local			\$0
Local/In-Kind			\$0

State	\$0
State/In-Kind	\$0
Other Federal	\$0
Transportation Development Credit	\$0
Adjustment	\$0
Total Eligible Cost	\$744,674

(The Transportation Development Credits are not added to the amount of the Total Award Budget.)

U.S. Department of Labor Certification of Public Transportation Employee Protective Arrangements:

Review Decision: DOL Concur - Certified

Original Certification Date: 6/1/2020

Special Conditions

There are no special conditions.

FINDINGS AND DETERMINATIONS

By signing this Award on behalf of FTA, I am making all the determinations and findings required by federal law and regulations before this Award may be made.

FTA AWARD OF THE GRANT AGREEMENT

Awarded By:

Cindy Terwilliger

Regional Administrator

FEDERAL TRANSIT ADMINISTRATION

U.S. DEPARTMENT OF TRANSPORTATION

Contact Info: cindy.terwilliger@dot.gov

Award Date: 6/5/2020

EXECUTION OF THE GRANT AGREEMENT

Upon full execution of this Grant Agreement by the Recipient, the Effective Date will be the date FTA or the Federal Government awarded Federal assistance for this Grant Agreement.

By executing this Grant Agreement, the Recipient intends to enter into a legally binding agreement in which the Recipient:

- (1) Affirms this FTA Award,
- (2) Adopts and ratifies all of the following information it has submitted to FTA:
 - (a) Statements,
 - (b) Representations,
 - (c) Warranties,
 - (d) Covenants, and
 - (e) Materials,
- (3) Consents to comply with the requirements of this FTA Award, and
- (4) Agrees to all terms and conditions set forth in this Grant Agreement.

Executed By:
Renae Jording
Transit Director
Cheyenne, City Of
6/8/2020